

CONFIDENTIALITY AND NON-DISCLOSURE AGREEMENT

I, [] (“Contractor”), an employee of [] (“Employer”), in exchange for valuable consideration, including the ability to work on projects for and provide services to [ALTRIA COMPANY] (the “Company”), agree to the following terms.

1. The following definitions apply to this Agreement:

a. “Company” means the Altria Group company to which Contractor is assigned to work and its successors and assigns.

b. “Company Affiliate” means Altria Group, Inc., its wholly-owned subsidiaries and affiliates, and their successors and assigns. “Company Affiliate” also includes: (i) Horizon Innovations LLC, a joint venture between Philip Morris USA and Japan Tobacco International (JTI), a subsidiary of JT Group; and/or (ii) any other joint venture between the Company or a Company Affiliate and JT Group or one of its subsidiaries. The Company itself is excluded from the definition of “Company Affiliate.”

c. “Confidential Information” means information relating to the Company and/or any Company Affiliate that is not generally known to the public, which if misused or disclosed could adversely affect the business of the Company and/or any Company Affiliate. Confidential Information includes, but is not limited to: trade secrets; lists of and other non-public information about current and prospective customers; business plans or strategies; marketing plans; sales and account records; prices or pricing strategy or information; current and proposed non-public advertising and promotional programs; research or development projects or plans; non-public financial information; methods, systems, techniques, procedures, designs, formulae, inventions, discoveries, processes, concepts, ideas, know-how, works of authorship, hardware, computer software programs, databases, methods of manufacture and improvements thereof, whether or not it may be protected under any patent, copyright, trademark, trade secret or other principles; and other technical, technological, or business information of a similar nature not generally known to the public (other than by Contractor’s breach of this Agreement), which if misused or disclosed, could adversely affect the business of the Company and/or any Company Affiliate. Confidential Information includes any such information that Contractor may prepare or create during Contractor’s assignment, whether on behalf of the Company or on behalf of any Company Affiliate to whom Contractor provides services, as well as such information that has been or may be created by others in those capacities to which Contractor has obtained access as a result of or through Contractor’s assignment. Confidential Information does not include information that is generally known to the public or that has been made known to the public through no fault of Contractor.

2. Except as authorized by the Company and/or any Company Affiliate, as necessary to perform Contractor’s work for the Company, or as required by law, Contractor will not at any time during Contractor’s assignment or following the conclusion of that assignment for whatever reason: (a) disclose any Confidential Information, (b) use any Confidential Information for Contractor’s own benefit or the benefit of any person, company, or other entity of any type, or (c) remove, or aid in the removal of, any Confidential Information from the premises of the Company or any Company Affiliate, or from any other location where Confidential Information is maintained or stored by the Company or any Company Affiliate. Contractor understands and agrees that all Confidential Information is, and at all times remains, the property of the Company

and/or any Company Affiliate.

3. Nothing in this Agreement shall be construed to prevent disclosure of Confidential Information as may be required by applicable law or regulation, or pursuant to the valid order of a court of competent jurisdiction or an authorized government agency. Specifically, nothing in this Agreement:

a. limits Contractor (with or without prior notice to the Company and/or any Company Affiliate) from raising in good faith or participating in an investigation regarding any potential violation of law or regulation with any governmental or regulatory agency, including the Securities and Exchange Commission (SEC);

b. prevents Contractor from making any disclosure protected by law under the whistleblower provisions of any state or federal statutes or regulations;

c. prevents Contractor from discussing or disclosing information about alleged discrimination, sexual harassment, or sexual assault; or

d. prevents Contractor from discussing or disclosing information about alleged unlawful criminal activity to any local, state, or federal government agency.

4. Contractor understands and agrees that, as used in this Agreement, "Work Product" means and includes all of the following: any invention, discovery, process, method, technique, formula, concept, idea, work of authorship, and improvement thereof, whether or not it may be protected under patent, copyright, trademark, trade secret or other principles, that is related to the business, anticipated business, research, development, design activities or products of the Company and/or any Company Affiliate.

a. Contractor agree that the Company and/or any Company Affiliate shall have sole and exclusive proprietary rights in and to all Work Product that is conceived, developed, or made by Contractor alone or in conjunction with others: (i) during Contractor's assignment with the Company, whether or not during regular working hours, on Company premises, or with Company materials, and/or (ii) after the termination of Contractor's assignment with the Company, if in either case such Work Product is based on or related to, or arises or results from, any work performed by Contractor for the Company or on behalf of any Company Affiliate during Contractor's assignment. Contractor agrees to disclose promptly and fully to the Company all such Work Product. Contractor also agrees to treat all such Work Product as confidential except to the extent specifically directed otherwise by the Company and/or any Company Affiliate.

b. Contractor agrees to and hereby does assign to the Company and/or any Company Affiliate all right, title, and interest, including all intellectual property rights, in and to all Work Product, including without limitation the assignment of right to claim priority. To the extent that any such Work Product, or portion of such Work Product, is protected under the U.S. Copyright laws, such Work Product shall be considered a "Work Made for Hire" as defined in the U.S. Copyright laws and shall automatically be owned by the Company and/or any Company Affiliate. Contractor also agrees to waive all claims to moral rights, rights of attribution, or similar rights in any Work Product.

c. During and after Contractor's assignment with the Company, Contractor agrees to cooperate fully with the Company and/or any Company Affiliate in the protection (including any litigation or controversy) of any intellectual property rights derived from or related to its Work Product. Contractor further agrees that if the Company is unable, after reasonable effort, to secure Contractor's signature on any such papers, any executive officer of the Company or any Company Affiliate, as applicable, shall be entitled to execute any such papers as Contractor's agent and attorney-in-fact, and Contractor hereby irrevocably designates and appoints each executive officer of the Company as Contractor's agent and attorney-in-fact to execute any such papers on Contractor's behalf, and to take any and all actions as the Company may deem necessary or desirable in order to protect its rights and interests in any Work Product, under the conditions described in this sentence.

d. Contractor understands and agrees that the provisions of this Agreement requiring assignment of Work Product to the Company and/or any Company Affiliate do not apply to any invention that is developed completely on Contractor's own time without using the Company's equipment, supplies, facility or Confidential Information except for those inventions that (i) relate to the Company's business or actual or demonstrably anticipated research or development, or (ii) result from any work performed by Contractor for the Company.

5. Unless it would impede Contractor's ability to communicate directly with any governmental or regulatory agency, including the SEC, at the end of Contractor's assignment with the Company, regardless of how or why the assignment ends, Contractor will surrender and return to the Company any and all Company property, as well as all copies and written or electronic records of Confidential Information in Contractor's possession or control.

6. Unless it would impede Contractor's ability to communicate directly with any governmental or regulatory agency, including the SEC, Contractor agrees that Contractor will immediately notify the Company if Contractor receives a subpoena, order from a court or administrative agency, or other legal process which seeks to require disclosure of Confidential Information. Contractor understands that nothing in this Agreement prohibits Contractor from complying with and responding truthfully to any lawfully-issued subpoena, court order, or other lawful request by any regulatory agency or governmental authority.

7. Contractor agrees that the Company and/or any Company Affiliate are beneficiaries of this Agreement and have a legitimate business interest in preventing Contractor from taking any actions that would violate this Agreement. Contractor further agrees that the Company and/or any Company Affiliate (individually and taken as a whole) would be irreparably harmed if Contractor violated the terms of this Agreement or if any of its terms were not specifically enforced and that money damages would not provide adequate relief. Contractor therefore agrees that if Contractor violates or threatens to violate any term of this Agreement, the Company and/or any Company Affiliate shall be entitled to injunctive relief, specific performance, any other equitable remedies, and any and all remedies at law, plus its costs and attorneys' fees incurred to enforce this Agreement or to obtain any other relief.

8. Contractor understands and agrees that if the Company and/or any Company Affiliate waives or allows any breach of this Agreement, that waiver or allowance will not be a waiver of any future or other breach, whether of a similar or dissimilar nature.

9. Contractor understands and agrees that each provision of this Agreement is a separate

and independent clause. If any clause is found to be unenforceable, that will not impair the enforceability of any other clauses. Further, if any provisions of this Agreement should ever be deemed to be overly broad under applicable law, Contractor agrees that such provisions should be and are reformed to the limitations permitted by applicable law. Contractor authorizes a court having jurisdiction to reform the provisions accordingly and enforce them to the extent permitted by applicable law.

10. Contractor understands and agrees that this Agreement survives the termination of Contractor's assignment with the Company, regardless of how or why that assignment ends. This Agreement may not, on behalf of or in respect to the Company, be changed, modified or otherwise terminated, in whole or in part, unless agreed to in writing by an officer of the Company.

11. Contractor understands and agrees that this Agreement will be governed by and interpreted in accordance with the laws of the Commonwealth of Virginia. Any dispute arising between the parties related to or involving this Agreement must be litigated in a court having jurisdiction in the Commonwealth of Virginia, and Contractor agrees and stipulates that the Circuit Court of the City of Richmond, Virginia and the surrounding counties, and the United States District Court for the Eastern District of Virginia, Richmond Division, shall have personal jurisdiction over Contractor and that venue is proper only in such courts for all actions or proceedings with respect to this Agreement.

12. By signing below, Contractor represents and acknowledges that Contractor has carefully read this entire Agreement and fully understand its terms.

Print Name

Signature

Date